Haryana Vidyut Prasarn Nigam Ltd vs Haryana Electricity Regulatory ... on 21 November, 2012

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)
Court-II

E.P.4 of 2012 in Appeal No. 102 of 2011

Dated : 21st November, 2012

Present: Hon'ble Mr. Justice P.S. Datta, Judicial Member
Hon'ble Mr. V.J. Talwar, Technical Member

Haryana Vidyut Prasarn Nigam Ltd. ... Execution Petitioner/ Appellant(s)

Versus

Haryana Electricity Regulatory Commission .... Respondent(s)

Counsel for the Appellant (s) : Mr. Achin Mittal, Adv.,

Counsel for the Respondent(s) : None

ORDER

Learned counsel for the Execution Petitioner submits that the Commission has passed an order on 2nd November, 2012 but the petitioner is aggrieved by the recalculation made by the Commission in the order. He seeks liberty to file an appeal against the Commission's order dated 02.11.2012. We also think that this execution petition has now become infructuous consequent upon the Commission's order of 2.11.2012. Accordingly, this execution petition stands disposed off with liberty to the execution petitioner to file fresh appeal according to law. Nobody appears today on behalf of the Commission.

(V.J. Talwar) (Justice P.S. D
Technical Member Judicial Membe

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